

Members of the American Legal Profession on the Political Spectrum By Sahana Dasgupta

Abstract

This paper is the reevaluation of a study that focused on the political ideologies of workers within the legal profession (Bonica, Chilton and Sen 2014). I use the DIME dataset, which is a comprehensive ideological mapping of political elites, interest groups, and donors within society. This data will be able to provide a comprehensive understanding as to the factors influencing political ideologies, and whether variables like region or gender might make a difference in how liberal or conservative someone can be. I will be focusing primarily on lawyers, and my results demonstrate that lawyers' ideologies vary by state. In addition, the amount of money someone donates by election varies by individual or corporation status. One of the weaknesses in this project would definitely be the disparity in gender within the data, since the men outnumber the women almost 2 to 1, which could result in skewed analyses. Given more time, one of the further areas that could have been explored within this paper would have been how the political ideologies of certain demographics changed over the election cycles, and whether there was any singular factor that caused that change to occur.

Introduction

Lawyers have a large influence on American public life, with 8% of the nation's lawyers working within the government (American Bar Association 2012). They make up a significant portion of the Fortune 500 CEOs and CFOs (Claybourn 2024), and occupy "crown jewel" positions at prestigious universities such as Harvard, UCLA, Yale, and more (Winterhalter 2013). With this much representation within society's powerful groups, the American Bar Association is one of the most powerful lobbying groups in the US (Bonica et al., 2016). Due to their established importance, the ideologies of lawyers have been a consistent source of debate for academics: the ideologies of law firms, schools, and even judges have been evaluated to help answer these longstanding questions (Roeder 2014).

Currently, registered voters are evenly split between the Republican and Democratic parties, with 48% leaning towards Republicans and 49% leaning towards the Democrats (Nadeem 2024). However, "a greater share of registered voters say they are both ideologically **conservative and associate with the Republican Party** (33%) than say they are **liberal and align with the Democratic Party** (23%)," (Nadeem 2024). Namely, this is because many voters that associate with the Democratic Party describe their views as being conservative or moderate (Nadeem 2024).

The goal of this study is to understand the ideologies and political contributions of members of the American legal profession and I use the same data as the original Bonica et al (2014) paper to complete this task. Since the publication of the original study, Adam Bonica has been updating the Database on Ideology, Money and Elections (DIME) dataset to include elections in subsequent years (Bonica 2023). The DIME dataset is a comprehensive ideological mapping of political elites, interest groups, and donors within American society. The dataset

contains political contributions made by both individuals and organizations for local, state, and federal elections from 1979 to 2022. It contains separate databases with information on all the political contributors, all the recipients, the specific contributions made, as well as a combined database with the overall data.

The dataset that I'll be using in this paper is the contributor database, which contains important variables such as names, professions, CFscores that represent donor political ideology, geographic locations, gender, and more. This data will be able to provide a comprehensive understanding as to the factors influencing political ideologies, and whether variables like region or gender might make a difference in how liberal or conservative someone can be. By splitting the overall dataset into smaller data frames organized by the variables that will be compared, a direct analysis can be drawn by comparing the resulting mean CFscores of these lawyers.

This paper will feature graphs for the following variables: gender, geographic region, profession, contributor employers, states, and individuals vs. corporations. These graphs will come together to tell a compelling story about the different factors that can be unknowingly influencing our political ideologies. The graphs will show if one gender is generally more liberal than the other, if the region one was born in and their surroundings affect their views, if working for a big corporation is different from working for smaller companies in terms of ideology, as well as the distribution of political ideologies across America. This will provide a detailed analysis of the political landscape in our society today. Using this analysis using the more recent data, I verify whether Bonica's original conclusion remains true in the status quo: that the political spectrum within lawyers in our society is majorly heterogenous.

Methods

The DIME dataset has over 500 million entries in itemized political contributions made by individuals and organizations to support numerous election campaigns, whether they be local or federal. Consequently, this meant that there were many databases available to use for this paper. In order to make this decision, I first analysed Bonica's study, and what his results failed to consider with the new data that the DIME dataset provides in the status quo.

The dataset is composed of three major databases: the contributor database, the contribution database, and the candidate/recipient files. The contributor database lists all the political campaign monetary contributions that were made during campaign elections, and which individual or firm made that donation. The contribution database lists the organization or group that the monetary donations were made to, alongside the contributors. The candidate/recipient files list all the cycle-specific entries for those that met and didn't meet the requirements to be included within this study.

I chose the contribution database because it would give me both the contributors and the organizations that were donated to, allowing me to gauge whether the individuals that donated were liberal or conservative. This would allow me to group data based on gender, state, location, and more, and would allow me to conduct a comparative analysis on the political spectrum within the status quo.

Bonica's study concluded that the political spectrum among all of society was generally heterogenous – meaning that there were generally an even amount of liberal and conservative donations, and neither ideology overpowered the other. In my research, I narrowed Bonica's study of general society to only focus on the lawyers and legal firms within society, to analyse how the ideologies within one of the major branches within American society pan out.

Since his research, we have had many social and political changes within the United States, ranging from a global pandemic to having the century's highest voter turnout in a presidential election in 2020. This led me to hypothesize that the social and political climates within society may have been dramatically altered as well. To test this hypothesis, the purpose of my review article is to refine Bonica's conclusion by including data from more recent election cycles that he was unable to consider, and determine whether his theory still stands true today.

Results

For this study, I present three different perspectives of the ideology and political contributions of members of the American legal profession. First, I examine the ideological differences between men and women of different states. Second, I examine the ideological distribution (based on contribution) of individual lawyers versus legal firms. Finally, I look at the distribution of contributions across different presidential elections based on contributor status as an individual or as a firm. The analyses and results are discussed further along with each figure below.

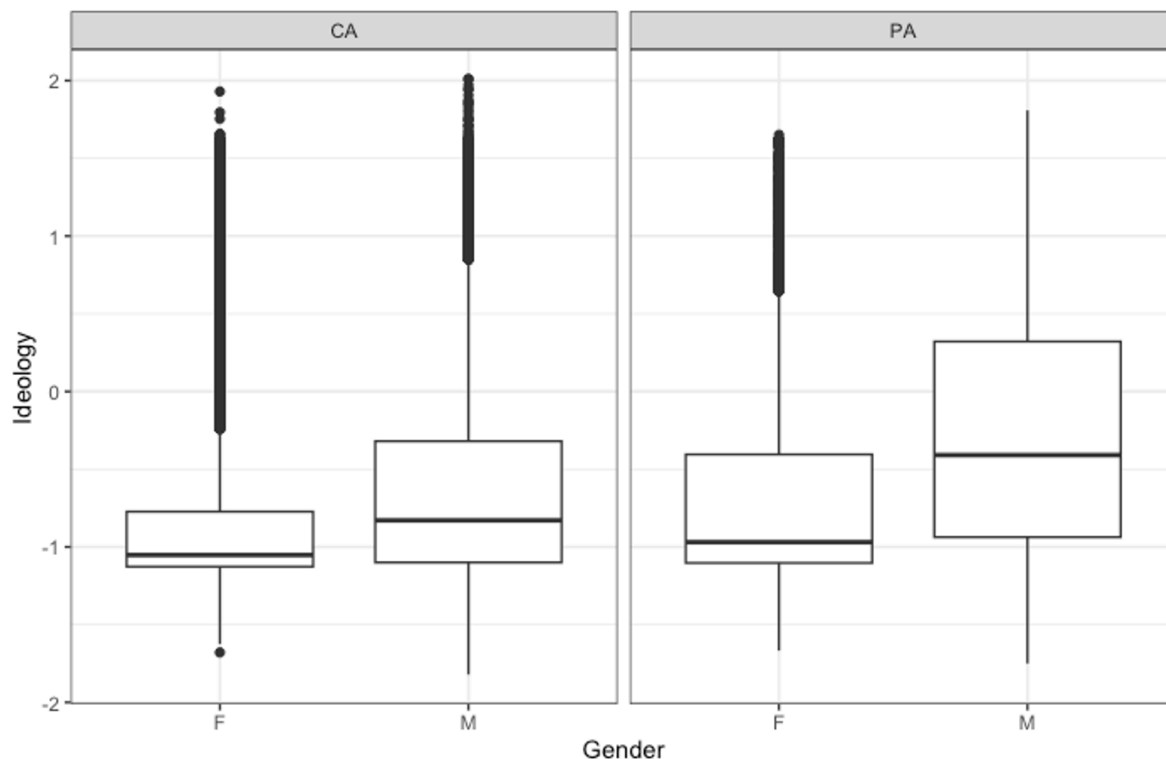


Figure 1: Ideology by Gender

Note. Generated graph that shows the density of conservatives and liberals amongst men and women in California and Pennsylvania.

In Figure 1, I am interested in whether there is an ideological split between men and women in the legal profession and whether such split is more stark depending on the place where someone practices.

To do this, I group the data by gender and state in which the donor was from. I compute the average ideology (as reported by Bonica's CFscore) and plot it as a boxplot, shown in Figure 1. I chose California and Pennsylvania because they represent somewhat two different political spectrums in the United States.

In the status quo, California is largely considered to be a Democratic state, with the democrats representing 46 of the state's congressional districts and holding supermajorities in both legislature chambers. While the red and blue regions within California may seem geographically even, adjustment of the state's map shows that the state is actually more Democratic when the areas with eligible voting residents are emphasized (McGhee, 2020).

Additionally, Pennsylvania is generally known as a battleground state despite its recent Democratic votes, and has earned itself the reputation of being known as a Keystone state in elections to this day (270ToWin, 2024).

In Bonica's (2023) CFscore, negative values indicate liberalism, or being left of center, whereas positive values indicate conservatism, or being right of center.

For California, Figure 1 shows that on average, male lawyers are slightly more conservative (less liberal) than their female counterparts. However, their average ideology for male lawyers remains generally liberal (mean and 75% Interquartile range is less than 0). There is higher variability in the ideological distribution of male lawyers compared to female lawyers as shown by the broader interquartile range for male lawyers.

Moving to Pennsylvania, we again see that male lawyers are more likely to be more conservative (or less liberal) than their female counterparts, though the average lawyer remains liberal (mean less than 0 on the CFscore). However, there is a greater variation in male lawyer ideology as the 75 percentile of male lawyers are slightly conservative compared to their female counterparts, where conservative lawyers are the outlier.

Comparing the two states, we see that female lawyers in both California and Pennsylvania are roughly the same in their average ideology, though there is more ideological diversity among female lawyers in Pennsylvania. On the other hand, male lawyers in Pennsylvania are significantly more conservative than male lawyers in California, and, like women, there is more ideological diversity among male lawyers in Pennsylvania compared to male lawyers in California.

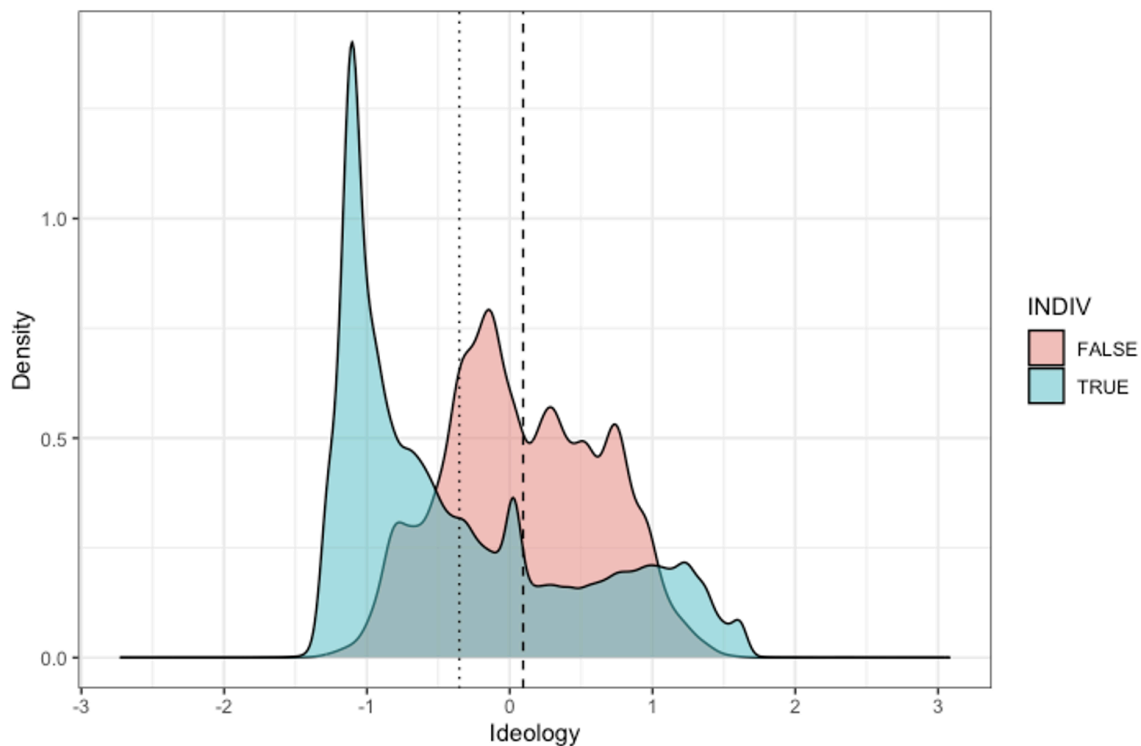


Figure 2: Ideologies- Corporations vs. Individuals

Note. Generated graph that shows the density of conservatives and liberal amongst both legal firms and individual lawyers.

In Figure 2, I am interested in whether there is a clear difference between the ideologies that are sustained by corporations, and the ones that are sustained by individual lawyers.

In order to do this, I first group the data into corporations and individual lawyers. I compute the average ideology (as reported by Bonica's CFscore) and plot it as a smooth curve, shown in Figure 2. I chose to compare corporations and individual lawyers because I've always held the belief that corporations tend to be very politically extreme in their views, especially if they have a large influence, and I wanted to confirm whether that held true when it came to elections. I wanted to compare the ideologies between corporations and individual lawyers to see if that statistically held true.

In Bonica's CFscore, negative values indicate liberalism, or being left of center, whereas positive values indicate conservatism, or being right of center. The blue curve represents the individuals, while the red curve represents the corporations.

Observing the curves as a whole, Figure 2 shows that individuals ideologies' tend to peak at the liberal -1 value, with very few individuals on the conservative side of the graph. The corporations have a peak at the liberal -0.5 value and the conservative 0.5 value, but overall tend to have more conservative values.

To compare the ideologies, Figure 2 shows that there is a difference between the two means of both corporations and individuals. The mean for corporations is represented by the dashed line, while the mean for individuals is represented by the dotted line. On average, the mean of individuals shows that they tend to be more liberal, while the mean for corporations show that they fall firmly in the center.

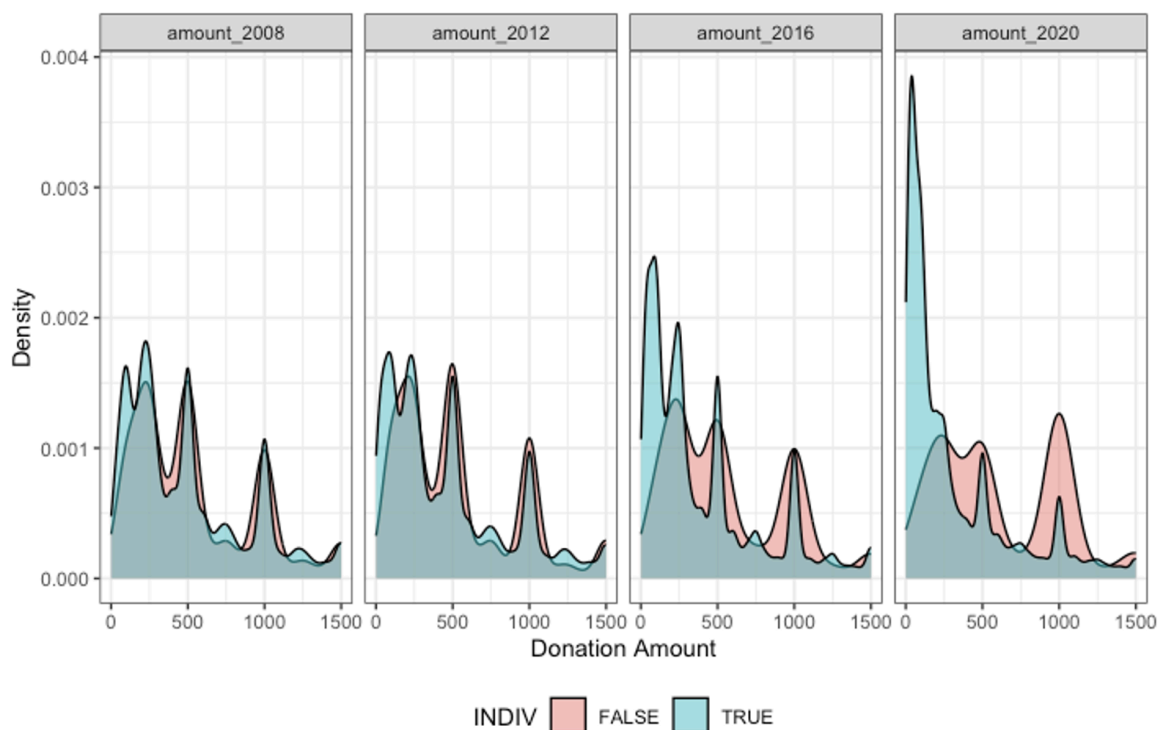


Figure 3: Amount Donated Per Presidential Election Year

Note. Generated graph that shows the amounts of money donated to political campaigns during presidential elections by both legal firms and individual lawyers.

In Figure 3, I am interested in whether the amount of money that was donated by both individual lawyers and corporations in the last four Presidential elections changed or stayed relatively the same. I'm also interested to observe whether individuals or corporations tend to donate more money during elections to political campaigns.

To do this, I take data from the election years of 2008, 2012, 2016, and 2020. I group the data into corporations and individual lawyers, and I had to remove all corporations and individual lawyers that did not pay any money in the election year to help remove outliers from the dataset. I then narrowed the range of values for donation amounts from 0 to 1500 in order to help capture the full spectrum of the curves, as that was where most of the data was concentrated. I compute the average ideology (as reported by Bonica's CFscore) and plot it as a smooth curve, shown in Figure 3. I chose to compare the amounts from the last four election

years so I would have enough data to be able to notice an observable difference between the amount of money donated, as well as be able to hypothesize why the amounts may be smaller or bigger.

The blue curve represents the individuals, while the red curve represents the corporations. The donation amounts increase from left to right, with the least amount donated being 0 dollars, and the highest amount donated being 1,500 dollars. Since most political contributions are small, this allows us to focus on small donations in the analyses.

Observing the curves as a whole, Figure 3 shows that corporations generally tend to donate higher amounts of money than individuals do. While in 2008 and 2012, the donation amounts for both corporations and individuals remained relatively the same, Figure 3 shows that in 2016 and 2020, corporations donated more money as a whole. In the graph for 2016, we see that individuals peak at around 100, 250, and 500 dollars, while corporations peak at 250, 500, and 1000 dollars. A similar situation can be seen in the graph for 2020, where individuals peak at around 100 dollars, while corporations peak at 250, 500, and 1000 dollars.

Figure 3 also shows that individuals donated less money in 2020 than they did in 2016 while corporations remained unaffected, a reasonable conclusion for that being the effects of the COVID-19 pandemic on the financial incomes of a majority of individuals within society. This could be because legal firms tend to remain unaffected during financial crises and hold their income steady, as seen through precedent in past economic downturns. “Of the past three downturns, only the global financial crisis of 2008–09 resulted in a decline in aggregate Am Law 100 revenue”, showing the resilience that law firms have when managing their finances in times of economic crisis (Babbitz et al., 2020).

As a whole, both individuals and corporations donated more money in 2016 and 2020 than they did in the years of 2008 and 2012. While a certain conclusion cannot be drawn as to the reason why just from the data itself, it is reasonable to infer that it may be because of the candidates that were running during the election, prompting more people to get involved.

Discussion

Across the three analyses, I found that:

- Women lawyers generally tend to be more liberal, however the average CFscore for both men and women remain generally liberal regardless of the state (California vs. Pennsylvania).
- Individual lawyers tend to contribute to more liberal recipients, while corporations are more moderate with their donations to either side.
- Most individual lawyer contributions tend to be small dollar amounts, as seen in Figure 3, with many new donors participating in the 2020 election.

Overall, my research confirmed Bonica’s old conclusion that society had mainly heterogenous political views, and no ideology dominated over the other. This can be seen within the legal field through the data represented in the graphs, where it is clear that even in states with entirely

different political climates, the amount of lawyers that are either conservative or liberal remain approximately the same despite some lawyers expressing slightly more liberal views on average. This same conclusion held true for both lawyer individuals and legal firms as well, contradicting my previous belief that legal firms had strongly left or right-leaning views. As the data has shown, firms tend to be more neutral in their views than the individual lawyer. Therefore, considering recent data of all the elections that wasn't in Bonica's previous study, his conclusion that the political climate in the status quo is heterogenous remains accurate to this day.

One of the main shortcomings of the data is the disparity in gender within the data, since the men outnumber the women almost 2 to 1, which could result in skewed analyses. For instance, the lower amount of available data for women in the legal field may result in an inaccurate comparative analysis of the ideologies between women and men, as the sample sizes I am comparing are not equal. This, however, may be a reflection of the fact that the American legal profession is predominantly male. Furthermore, the DIME dataset is a wealth of data covering political contributions over half a century's time in political campaigns and elections. That said, data files are massive, and the resources available for this project meant that there are more avenues to explore than there was computing capacity. With more time and more resources however, it would have been possible to work around this issue and work with all of the data to create a more comprehensive analysis of society's political climate today.

Additionally, given more time one of the further areas that could have been explored within this paper would also have been how the political ideologies of certain demographics changed over the election cycles, and whether there was any singular factor that caused that change to occur. Furthermore, another avenue that could be pursued is to compare the political ideologies of lawyers to those not in the legal field and analyse if there is a difference, and if so, why that is the case. It would also be possible to expand outside just the legal field and map the ideologies of society in general to judge the general political climate of the status quo.

Works Cited

- American Bar Association . (n.d.). *Lawyer demographics 2013 - American Bar Association*. Lawyer Demographics.
https://www.americanbar.org/content/dam/aba/migrated/marketresearch/PublicDocuments/lawyer_demographics_2013.authcheckdam.pdf
- Babbitz, T., Bollard, A., D'Amico, A., Garbasz, G., Gajendragadka, S., O'Rourke, A., & Sachdeva, C. (n.d.). *Covid-19: Implications for law firms*. McKinsey & Company.
[https://www.mckinsey.com/~media/McKinsey/Industries/Financial Services/Our Insights/COVID 19 Implications for law firms/COVID-19-Implications-for-law-firms-vF.ashx](https://www.mckinsey.com/~media/McKinsey/Industries/Financial%20Services/Our%20Insights/COVID%2019%20Implications%20for%20law%20firms/COVID-19-Implications-for-law-firms-vF.ashx)
- Bonica, A., Chilton, A. S., & Sen, M. (2016). The political ideologies of American lawyers. *Journal of Legal Analysis*, 8(2), 277-335.
- Bonica, A. (2023). Database on ideology, money in politics, and elections (DIME). Harvard Dataverse, 3.1
- Claybourn, C. (2024, May 7). *Where the fortune 500 CEOs went to law school*. 15 Fortune 500 CEOs Who Earned a Law Degree .
<https://www.usnews.com/education/best-graduate-schools/top-law-schools/articles/2012/06/26/where-the-fortune-500-ceos-went-to-law-school>
- McGhee, E. (2024, March 27). *California's Political Geography 2020*. Public Policy Institute of California. <https://www.ppic.org/publication/californias-political-geography/>
- Nadeem, R. (2024, April 9). *1. the partisanship and ideology of American voters*. Pew Research Center.
<https://www.pewresearch.org/politics/2024/04/09/the-partisanship-and-ideology-of-american-voters/#:~:text=The%20partisan%20identification%20of%20registered,lean%20to%20the%20Republican%20Party.270toWin.>
- 270toWin. (n.d.). *Pennsylvania presidential election voting history - 270towin*. 270toWin.com.
<https://www.270towin.com/states/Pennsylvania>
- Reder, O. (2014, December 5). *The most conservative and most liberal Elite Law Schools*. FiveThirtyEight.
<http://fivethirtyeight.com/features/the-most-conservative-and-most-liberal-elite-law-schools/>
- Winterhalter, B. (2013, November 25). *The real reason law schools are raking in cash*. Salon.
http://www.salon.com/2013/11/24/the_real_reason_law_schools_are_raking_in_cash/